

Marc Moszkowski
Le Verdos
83300 Châteaudouble
Tél: 04 89 53 23 44

Le Verdos, 23 février 2023

Monsieur le Bâtonnier Benoît Porteu de
la Morandière
Maison de l'Avocat
5 rue Rifle Rafle
13100 Aix-en-Provence

Monsieur le Bâtonnier¹,

I have the honour of bringing to your attention a dispute with Maître² Romain Cherfils, associate lawyer at the Lexavoué law firm in Aix-en-Provence.

On June 14, 2019, I appointed Maître Cherfils to defend my case before the Aix-en-Provence Court of Appeal, in a dispute between me and Mr. David Rumsey, an American citizen residing in the State of New York in the United States.

The matter of the dispute, which dates from 2018, was the repayment of an alleged loan at a largely usurious rate over a period of several years, whereas my opponent had never paid me any amount whatsoever, nor produced a proof of any payment. The judge in the summary judgement court of Draguignan had very quickly ruled in my favour, but my adversary then assigned me to the merits in another court, after having obtained a judicial conservatory mortgage on the strength of false declarations. I was sentenced in my absence, since I was still looking for a lawyer when the judgment was pronounced, without the date of the hearing having even been communicated to me beforehand.

I therefore appealed in June 2019 before the Aix-en-Provence Court of Appeal, and I assigned as counsel Maître Cherfils, to whom I provided simple, clear, and irrefutable evidence proving my good faith and the duplicity of my opponent. These documents were never discussed on the merits with my lawyer, so I deduced that they happened to be so simple and irrefutable that Maître. Cherfils had not seen necessary to further discuss them.

To my amazement, the Court of Appeal ruled on November 22, 2022 in favor of my opponent, even though the latter had never provided any proof of the payment of the amounts at stake, and I had provided proof that this payment had never taken place. My analysis a posteriori is that the pieces of evidence I had provided were neither read nor understood, neither by my lawyer, nor by the judges.

¹ President of the bar association

² French equivalent of Esquire

I therefore decided to take the case to the Court of Cassation. I obtained with great difficulty a conference call with Maître Cherfils, which took place on December 29, 2022 in the early afternoon. During the long conversation, Maître Cherfils formally promised to continue taking charge of the case and to forward all documents to a law firm practicing before the Court of Cassation in Paris. He also promised to prepare a written report of the planned procedure, no later than December 30. Without receiving a message from Mr. Cherfils, I wrote to him seven times and tried to contact him three times over the telephone in the two months that followed, but my attempts remained unsuccessful. Maître Cherfils finally responded, but not until 6:01 p.m. on the very day the deadline for the appeal in the Court of Cassation had expired, thus obviously making the appeal impossible.

I see in such carelessness deep and recurrent negligence on the part of Maître Cherfils, and perhaps even duplicity to prevent his incompetence from being revealed in the Court of Cassation, since it was he who made the appeal Impossible, despite my clear decision to go ahead and his commitment to assist me.

I believe that my interests were not properly defended, due to a lack of professionalism and obvious offhandedness and negligence.

This misadventure causes me very serious damage, since being without sufficient resources I run the marked risk of being dispossessed of my only real estate in the very short term, and therefore at a loss, and of being thrown onto the street at the age of nearly 70, in order to pay to a foreign fraudster a large amount with interest over ten years much higher than the rate of usury in force, the monthly interest alone amounting to almost twice my income. I have to posit that I live completely alone, without access to a vehicle in a very isolated place which I can never leave, and that what remained of my family has abandoned me several years ago.

The amount can be assessed for the moment at more than 125,000 €, although no other detail has reached me to-date.

Maître Cherfils did not give a proper response to my innumerable observations and remarks.

Therefore, I am led to request your intervention so that this serious issue can find a resolution. I attach to this letter an eight-page document to better explain the facts. This document includes the evidence I had provided to Mr. Cherfils.

Looking forward to your reply,

Respectfully,

Marc Moszkowski



Legal actions brought against Marc Moszkowski

- i. Marc Moszkowski has faced 8 lawsuits over the past 6 years. Although he managed to successfully defend himself in the difficult cases brought against him by American individuals and entities¹ in Florida Court and in United States Federal Court and Federal Court of Appeals, although he is neither a resident nor a citizen of the United States, and although he defended himself without an attorney most of the time, he lost the frivolous lawsuit brought against him by a U.S. national in the French courts, despite Marc Moszkowski being a French resident and citizen and having been represented by a French attorney. He had won this last case very easily in summary proceedings in a first court, but lost in a second, surprisingly enough, given the strength of his position.
- ii. Namely, on November 22, 2022, a French court sentenced Marc Moszkowski to pay one David Rumsey, a citizen and resident of the United States, the amount of €38,250 plus compound interest from 2013 to 2023, at the usurious and illegal rate of interest of 11.45%, the total approaching €125,000, despite French law which strictly prohibits long-term interest rates above 3.41% (January 2023).
- iii. The court found that the amount of €38,250 (\$50,000 at the time) was loaned by David Rumsey to Marc Moszkowski on June 4, 2013, according to an unsigned draft contract produced by David Rumsey.
- iv. However, David Rumsey has never produced any evidence that he would ever have made any payment to Marc Moszkowski, since he never made said payment.
- v. Nor has David Rumsey ever produced any evidence of any direct communication with Marc Moszkowski regarding the establishment of the loan he alleges.
- vi. On the other hand, Marc Moszkowski produced irrefutable evidence that the amount of 50,000 US dollars had been paid not by Dave Rumsey, but by Rustin Howard, Chairman of the Board of DeepGulf, Inc., as a salary advance to allow Marc Moszkowski to pay his French taxes. Marc Moszkowski believes that the judges never read the evidence he had provided (see pages below), and neither did his lawyer for that matter.

¹ In particular DeepGulf, Inc., a company registered in Florida of which he is the main shareholder with 48% of the amount of shares

- vii. Rustin Howard was, and still is, the Chairman of the Board of DeepGulf, Inc., a Florida company of which Marc Moszkowski was an employee and the President, and Rustin Howard had a legal obligation to pay the salaries of Marc Moszkowski, which he had formally guaranteed to the U.S. Government on his personal property.
- viii. Said salary advance was returned to the company over the next few months through funds paid to DeepGulf, Inc. by the French oil and gas construction company which hired Marc Moszkowski as a consultant in June 2013, at a daily rate of \$1,000 per day net of costs . Namely, no salary was ever paid to Marc Moszkowski during the term of the contract, which had however brought a net profit of 95,000 dollars to DeepGulf, Inc.
- ix. Rustin Howard maintained for several years to Marc Moszkowski that the loan project was just an accounting maneuver between him and his friend David Rumsey.
- x. To corroborate the above assertion, for four and a half years, David Rumsey never claimed any payment from Marc Moszkowski, and only did so in December 2017 at the instigation of Rustin Howard when a dispute arose between the latter two.
- xi. In 2019, Marc Moszkowski discovered among the documents which the U.S. Federal Court had compelled Rustin Howard to produce, that the capital invested by David Rumsey in DeepGulf, Inc. had been reduced by an amount exactly equal to the amount of the alleged loan, while that of Marc Moszkowski's had never increased, as if the company had bought back \$50,000 worth of shares from David Rumsey.
- xii. In short, Rustin Howard and David Rumsey had fraudulently conspired to disguise the legitimate salary which was owed to Marc Moszkowski as legitimate compensation for personal work which generated substantial income for the company, and to represent it as a personal loan from David Rumsey, at an exorbitant and illegal interest rate. Surprisingly enough, the French court ruled in favor of David Rumsey, despite the overwhelming evidence that David Rumsey's claim was fraudulent. Once again, Marc Moszkowski believes that the judges never really read the very clear evidence he had produced, any neither did his lawyer for that matter².
- xiii. In June 2020, a U.S. Federal Court found that DeepGulf, Inc. owed Marc Moszkowski the amount of one million dollars, although this amount was never paid because Rustin Howard had produced in court forged documents and fraudulent

² Romain Cherfils, Cabinet Lexavoué, Aix-en-Provence

SEE PIECES OF EVIDENCE HEREAFTER

claims that Marc Moszkowski would have made the absurd sacrifice of the amounts owed to him, although without any reason or compensation of any kind.

- xiv. Marc Moszkowski's real estate has recently been professionally appraised. Consequently, a bank was contacted by Marc Moszkowski for a mortgage loan of 30% of the value of the property. The loan, which does not require any recurring repayment, would have been used partly to deposit €125,000 in a blocked account while the Court of Cassation was debating the case, and partly to pay legal costs of around €5,000. Marc Moszkowski's current monthly income is just €700.
- xvi. However, although the mortgage loan has been approved in principle, it turns out that it cannot be paid out, because a French court had granted David Rumsey a conservatory judicial mortgage on the property of Marc Moszkowski, on the strength of false statements, while the bank requires that the assets be free of any mortgage in order to be able to disburse the funds.
- XVI. In particular, the request for registration of a judicial conservatory mortgage argued falsely that:
 - a. David Rumsey had "*remitted to Marc Moszkowski the amount of 38,750 euros in principal* ", which is manifestly and brazenly untruthful, and
 - b. The situation of "*Marc Moszkowski, in apparent conflict with his employer over the payment of his wages ... raises serious doubts about his ability to repay the amounts due*", while the role of David Rumsey was decisive in this conflict since he is one of the main shareholders of the company DeepGulf, Inc. and it was with his close friend Rustin Howard that he had precisely concocted the idea of the fictitious loan.
- xvii. Therefore, the very existence of the alleged debt absurdly prevents Marc Moszkowski from obtaining funds to deposit an equivalent amount.
- xviii. In addition, during a long telephone conversation held on December 29, 2022 between Marc Moszkowski and his lawyer, Maître Cherfils, the latter had formally promised to continue to take charge of the file and to forward the documents to a law firm of his choice practicing before the Court of Cassation. He had also promised to make a written report of the tentative procedure as of December 30. Without any message from Maître Cherfils, Marc Moszkowski wrote to him seven times and tried to contact him three times on the telephone in the two months that followed, but his attempts remained unsuccessful. Maître Cherfils finally responded, but not until 6:01 p.m. on the very day the deadline for the appeal in the Court of Cassation had expired, thus obviously making the appeal impossible.

SEE PIECES OF EVIDENCE HEREAFTER

THREE PIECES OF EVIDENCE SHOWING THAT THE LOAN PROJECT NEVER GOT BEYOND THE PROJECT STAGE AND THAT NO PAYMENT WAS EVER MADE BY MR. DAVID RUMSEY:

1. The company's funds were more than sufficient to allow the payment of Marc Moszkowski's salaries after March 2013, the date of the last salary;
2. Mr. Rustin Howard had in any case formally and officially guaranteed the payment of these salaries out of his own funds;
3. Payment of the sum of \$50,000 was made by an officer of Deepgulf, Inc. Mr. Rustin Howard, not by Mr. Rumsey.

TYPE OF DOCUMENT	FILE	REMARKS
1. Summary of payments made to DeepGulf, Inc. by French company GEOCEAN for the personal consultancy activities of Marc Moszkowski, in Singapore, Benin, China, and Malaysia	PAYMENTS FROM GEOCEAN TO DEEPGULF FOR THE ACTIVITIES OF MARC MOSZKOWSKI	\$95,000 was paid to DeepGulf, Inc. on behalf of Marc Moszkowski after DeepGulf, Inc. ceased payment of Marc Moszkowski's salaries
2. Commitment by Mr. Rustin Howard to the US Federal Government to guarantee the salaries of Marc Moszkowski out of its own funds and property:	RUSTIN HOWARD ATTESTATION	This attestation was kept secret from Marc Moszkowski until mid-2018
3. Transfer order dated June 4, 2013, signed by Mr. Rustin Howard, from his investment fund Whitesands , LLC	WHITESANDS BANK TRANSFER	It was Mr. Rustin Howard who made the transfer from his investment fund and who signed it

SEE PIECES OF EVIDENCE HEREAFTER

GEOCEAN PAYMENTS TO DEEPGULF ON BEHALF OF MOSZKOWSKI

Geocean		Grand total:	\$	125,500.00	\$	4,986.20	\$	130,486.20
Payee	Date	Type	Consultancy fees		Expenses		Invoice #	
DeepGulf	8/4/10	Services	\$	26,000.00				1
DeepGulf	8/18/10	Expenses			\$	3,426.00		2
DeepGulf	5/23/12	Services	\$	4,000.00				3
DeepGulf	5/23/12	Expenses			\$	496.73		4
DeepGulf	3/28/13	Services	\$	4,000.00				5
DeepGulf	3/28/13	Expenses			\$	967.47		6
DeepGulf	7/30/13	Services	\$	10,000.00				7
DeepGulf	8/7/13	Services	\$	37,500.00				8
DeepGulf	9/9/13	Services	\$	18,750.00				9
DeepGulf	1/6/14	Services	\$	18,750.00				10
DeepGulf	3/6/14	Services	\$	2,000.00				11
DeepGulf	12/3/14	Services	\$	4,500.00				12
DeepGulf	12/3/14	Expenses			\$	96.00		13
After March 2013			\$	95,500.00				

LAST SALARY PAID TO MARC MOSZKOWSKI: March 2013

Attestation

I, Rus Howard, attest to the following:

1. I am a U.S. Citizen;
2. My company, DeepGulf, Inc., is a startup company with plenty of business to pay the prevailing wage salary of \$120,000 in support of H-1B authorized employment for Mr. Marc Moszkowski;
3. In the event the company does not meet financial expectations, I will use personal assets, including the equity in my home, to guarantee payment of the prevailing wage. Please see the attached personal financial paperwork.

Signature: _____

Date: _____

A customer or team member, with the customer present, completes this form when requesting to send a wire. Outgoing wires can only be sent for Wells Fargo customers. Retain the original copy and provide a copy to the customer ensuring you give the customer the Agreement for Outgoing Wire Transfer Request (page 2 when form is accessed on-line & preprinted on the back of printed forms). Note: Wells Fargo Wire Transfer Services will route wires based on correspondent banking relationships. See back (page 2) for explanations of the Mexican CLABE account, the SWIFT BIC, the International Routing Code (IRC) and the International Bank Account Number (IBAN). ***Required information is noted with an asterisk.**

*Today's Date
06/04/2013

*Send Date (if next day submit wire after 4:30 CT. Store must hold if other than today or next day date.)
06/04/2013

1. Originator's Information

*Customer's Name Whitesands, LLC	*Phone Number (850) 470-9383
*Customer's Physical Address, City, State, Zip Code 17 Palafox St Suite 370 Pensacola, FL 32502	
*Transfer from Wells Fargo Account No. (Must be checking, savings, market rate, wholesale checking account or 10-digit command account) 2000035255255	*U.S. Dollar Wire Amount 50000.00

International Wire only: When sending in foreign currency, please ensure the beneficiary's account accepts the designated currency.

Funds to be sent in foreign currency ☐ Yes ☒ No	Foreign Currency Type/Name (SVT/SVP will default to FX unless specified otherwise)	*Currency Code (if known)	*Foreign Currency Amount
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2. Beneficiary/Recipient Information (This is the ultimate recipient of the wire transfer funds.)

*Beneficiary/Recipient Name Arthur Moszkowski	
*Beneficiary Account Number, Mexican CLABE # or the International Bank Account Number (IBAN) where applicable: FR7618106008108096420605022	
Beneficiary's Physical Address, City, State, Zip Code (A physical address is required for foreign wires.) unknown	
Information for the Beneficiary (invoice number, purchase order number, etc.)	Beneficiary Phone Number

3. Beneficiary Bank Information (This is the financial institution where the beneficiary maintains their account.)

*Beneficiary Bank RTN or SWIFT Bank Identifier Code (SWIFT BIC) AGRIFRPP881	*International Routing Code (IRC)
*Beneficiary Bank Name Caisse Regionale de Credit Agricole des Savoie	
Beneficiary Bank Address, City, State, Zip, Country (optional information) unknown	
Information for Beneficiary Bank (wires to Mexican banks require the CLABE account number in the Beneficiary instructions to ensure correct payment.)	

4. Intermediary Bank Information (This is a financial institution that the wire must pass through before reaching the final beneficiary bank.) This section is optional and not required for all wires. Please note that routing may be altered depending on Wells Fargo Bank's correspondent relationships.

Optional: *Intermediary Beneficiary Bank RTN or SWIFT BIC	International Routing Code (IRC)
*Intermediary Bank Name	*Intermediary Bank Account No.
Intermediary Bank Address City, State, Zip, Country (optional information)	
Information for Intermediary Bank	

5. Wire Fee & Customer Signature (Additional fees from intermediary and beneficiary banks may be charged to international transactions – see Fees Section on page 2 of this form.)

Wire Fee Amount (the Transfer From account will be charged the fee.) The region that houses the account being debited determines the fee amount. Use the fee information available through Teamworks and/or Banker's Guide. Do not use SVT/SVP for fee when account is not in your region. Additional fees may apply (see page 2 of this form). Contact WBR Store Support for questions regarding Command Fees.	*AU where the Originator's account is located 66092	*Fee Amount \$ 45.00
My signature here indicates agreement to all of the information on this Outgoing Wire Transfer Request and to the terms and conditions on the second page of this request. Wells Fargo is authorized to rely on the information on this Request in making the requested funds transfer.		*Date 06/04/2013
*X		

6. Wells Fargo Use Only – Wells Fargo Approval – Following MUST be completed for ALL outgoing wires.

International Wire Foreign Currency Information Rate	Contract No. (required when \$100,000 or more U.S. \$)	FX Trader Contact
*Wire Transaction/FAS Number FW-0066092-155-722232	*Name on ID used by customer Rustin R Howard	Method used to verify business acct. transaction authority Sig Card
*1st ID type, number, issued by State/Country & Expiration Date FL DL h630-736-56-378-0 Exp 10/18/2017	*2nd ID type, number, issued by State/Country & Expiration Date PIN	
*Initiated by and AU# X	*First Approval X	Second Approval, if applicable X

7. Wires in Process (WIP)

*When Customer's account is not debited, the WIP Account is funded by

☐ Paid by Check ☐ Paid Cash ☐ Paid through account other than checking, savings, MRA, TRS or Hogan. Reference Acct #:	
Tax ID Type – Type & No. are required when customer's account is not debited. ☐ Social Security ☐ TIN ☐ Non-U.S. Citizen without TIN ☐ Employer ID	Tax ID No. (if non-citizen provide Alien ID #, Passport # & Country)